

United States District Court for the District of South Carolina

Piedmont Booksellers Guild v. City of Norvale

Case No. SYN-DSC-26-CV-0107 · Stipulated Facts and Less-Restrictive-Alternatives Chart

Filed January 16, 2026

For purposes of the pending preliminary-injunction motion only, Piedmont Booksellers Guild and the City of Norvale stipulate to the numbered facts in Parts I through III. The stipulation does not establish facts for final judgment, waive objections to admissibility at a later stage, or concede the legal significance of an agreed fact. The propositions in Part IV are expressly disputed. The options in Part V identify alternatives discussed in the present record; listing an option does not mean both parties accept its legality, cost, feasibility, or adequacy.

Part I — Identity, Events, and Enactment

1. The Guild is a nonprofit association whose participants include independent booksellers, small publishers, librarians, authors, and readers.
2. It has organized recurring book fairs at Cedar Commons beginning in 2019.
3. Admission to those fairs is free, and the scheduled author sessions are also free to listeners.
4. Books and related goods may be sold by participating vendors.
5. A typical fair involves eighteen to twenty-eight sellers and four to seven authors receiving modest honoraria or qualifying compensation.
6. The City owns Cedar Commons and administers organized-use permissions for the site.
7. The City Council adopted Ordinance N-2025-18 on August 18, 2025.
8. The ordinance became effective October 1, 2025; standardized Form PS-1 and the fee worksheet issued November 3, 2025.
9. The ordinance applies to recurring public events when an organizer includes at least one paid speaker as defined in its text.
10. Nonspeaking vendors are not subject to the ordinance's additional paid-speaker provisions merely because they sell goods or answer incidental customer questions.

Part II — Requirements and 2026 Series

11. A covered organizer must submit a separate application for each event date no fewer than forty-five calendar days before opening time.
12. Related applications may be delivered together, but each date receives an individual decision and base assessment.
13. The required speaker schedule states each paid speaker's name, a brief topic or format description, and proposed starting time and duration.
14. The form also requests event hours, overall expected attendance, site layout, loading activity, emergency access, traffic measures, and a responsible contact.
15. The published charge for a covered date is \$240 plus \$45 for each paid speaker.
16. Six listed paid speakers produce a scheduled charge of \$510 for one event.
17. The Guild announced Cedar Commons fairs for February 14, April 11, June 13, August 8, October 10, and December 12, 2026.
18. If each announced fair listed six paid speakers, the combined scheduled assessments would equal \$3,060.
19. The forty-five-day point for February 14 was December 31, 2025.
20. The Guild had not completed every February author arrangement by that date.
21. Author availability may change because of release schedules, regional travel, illness, caregiving duties, or sponsorship decisions.
22. An organizer must notify the permitting office of a material change and must request review of a proposed paid-speaker addition or substitution.
23. The ordinance does not guarantee approval of a change requested after the filing cutoff and does not set a fixed time for the City's response.
24. A withdrawn speaker and a substitute are not both charged when the approved operational plan remains substantially unchanged; a genuinely additional paid speaker carries the published increment.

Part III — Site, History, and Administrative Record

25. Cedar Commons includes a central lawn, paved walks, a fountain-area narrowing, a public-library approach, and a service entrance near the area historically used for readings.
26. Market Lane borders the site, serves ordinary traffic, and contains a curb area used during vendor unloading; two bus boarding areas are nearby.
27. No reported fight, arrest, or violent incident has been attributed to a Guild fair in the materials submitted on this motion.
28. Two Guild fair dates generated minor medical responses: one involving heat-related dizziness and one involving a fall near a curb.
29. Neither medical response caused an evacuation.
30. Event materials record routine loading delay, occasional objects moved away from the service path, and temporary pedestrian concentration near readings or the crosswalk.
31. The available records do not contain continuous crowd counts or a complete measurement of each vehicle delay or informal staff direction.
32. No submitted record attributes a safety incident to an author's viewpoint or literary subject.
33. Presentation time, duration, format, location, equipment, expected audience, total attendance, loading, and nearby activity may be relevant to operational planning.
34. Compensation by itself does not establish the size of a speaker's audience, and an unpaid presenter may attract more listeners than a paid presenter.
35. The City asserts legitimate interests in pedestrian flow, vehicle circulation, emergency access, sanitation, capacity, reservation coordination, and allocation of municipal personnel; the Guild does not dispute that those interests are legitimate.
36. A condition or denial under the ordinance must identify a documented crowd, traffic, or municipal-resource risk in writing; hostility to lawful expression is forbidden as a decisional ground.
37. Pilot administration before this dispute included conditional approvals based on an emergency-route measurement and relocation of a stage away from a bus area; no pilot application was denied.
38. City time records use blended work categories and do not isolate the minutes spent reviewing each paid speaker.

Part IV — Propositions Not Stipulated

The parties identify the following disputes so that an agreed fact is not mistaken for an agreed inference.

Paid status and identity. The Guild says payment changes neither layout nor resource need and that a numbered slot permits accurate communication without fixing an author early. The City says payment objectively identifies an organized presentation and a name supplies a stable reference for review and amendments.

Topic and timing. The Guild says format and equipment convey operational facts without subject disclosure, and stable site facts can be filed early while author details follow. The City says a brief neutral label distinguishes the represented activity and a uniform forty-five-day period permits completeness, circulation, response, and staffing.

Amendments and fees. The Guild says no deadline or materiality rule protects a same-slot late opportunity and no evidence ties the \$240 trigger or \$45 increments to paid-speech costs. The City relies on section 7's case-specific written decisions and blended estimates for common processing and marginal schedule review.

History and channels. The Guild says peaceful events and corrected conditions support direct measures, while unpaid appearances, fewer authors, or other sites do not reproduce the program. The City says recurring access tasks warrant prospective regulation and that those options, early planning, and amendments inform the practical burden.

Neither party stipulates whether Cedar Commons' forum classification controls all applications of the ordinance, whether the regulation is narrowly tailored, whether the fees are valid, whether a facial claim is ripe, or whether any *Winter* factor is satisfied. Those are questions for the Court on the evidence and governing law.

Part V — Less-Burdensome Alternatives Considered

Direct schedules and thresholds. One model requests time, duration, format, location, equipment, and expected listeners for every scheduled program without regard to compensation. The Guild says this reaches crowd movement directly; the City says it could sweep in uncompensated civic activity and needs a workable definition of “scheduled.” Another model triggers enhanced review at an attendance, seating, structure, or location threshold. The Guild sees a direct physical fit; the City notes uncertain estimates and concentration times.

Early plans and substitutions. A stable-plan model takes date, hours, footprint, loading, access, contact, and attendance forty-five days ahead, with later program updates. The Guild says it preserves early planning; the City notes that late changes can affect completed assignments. A same-slot expedited notice would cover replacements whose time, place, format, equipment, and audience remain unchanged. The Guild favors a prompt standard; the City requires verification and a response rule for incomplete notices.

Charges and layouts. A neutral event fee or documented charge for personnel, equipment, barricades, or extraordinary services avoids costs keyed solely to compensated-speaker count, but the City says individualized accounting consumes time and reduces predictability. Presumptive unloading periods, emergency corridors, chair placement, signs, and separated signing lines address historical conditions, but the City says any presumption must adjust for construction, competing use, weather, or materially changed attendance.

The parties agree that these options are understandable administrative models and that several could operate together. The Guild contends their availability demonstrates that the challenged provisions burden substantially more speech than necessary. The City contends the Constitution does not require the least restrictive option and that the enacted safeguards already channel discretion. Counsel for both parties approve this statement solely for the preliminary-injunction record and certify electronic filing on January 16, 2026.